

10. **Infant ought not to be appointed Trustee.** — **Has no legal discretion.** — An *infant* labors under still greater disability than a *feme covert*; for, first, as regards *judgment and discretion*, a *feme* is admitted to *have* capacity, though she cannot in all cases freely exercise it; but an infant is said altogether to *want* capacity (*d*). An infant cannot be steward of the court of a manor (*e*), or attorney for a person in a suit (*f*), or guardian to a minor (*g*), or be a bailiff or receiver (*h*); but can only discharge such acts as are merely ministerial, as to be an attorney to deliver seisin (*i*), or as a lord of a manor to give effect to a custom (*j*), or to appoint a seneschal (*k*). So he might, until an act to the contrary (*l*), have been, as executor, the channel or conduit pipe through which the assets found their way to the hands of creditors in a due course of administration (*m*); but had he acted otherwise than ministerially, as by signing an acquittance without receipt of the money, such an exercise of discretion had been actually void (*n*). [However, an infant may exercise a power simply collateral over both real and personal estate (*o*), and as to personal estate he may exercise a power in gross notwithstanding that it may involve the application of discretion (*p*), but as to real estate it would seem that such a power could not be exercised unless expressly authorized by the instrument creating the power (*q*). And where an intention * appears that [*38]

(*d*) *Hearle v. Greenbank*, 3 Atk. 712, and 1 Ves. 305, *per* Lord Hardwicke; *Grange v. Tiving*, O. Bridg. 108, *per* Sir O. Bridgman; *Compton v. Collinson*, 2 B. C. C. 887, *per* Buller, J.; and see *Socket v. Wray*, 4 B. C. C. 486.

(*e*) Co. Lit. 3, b; and see Mr. Hargrave's note (4), *ib.* But acts done by an infant in the character of steward cannot be avoided by reason of his disability. *Eddleston v. Collins*, 3 De G. M. & G. 1.

(*f*) Co. Lit. 128, a; Br. Ab. "Covert. and Infant," pl. 55, and see *Hearle v. Greenbank*, 3 Atk. 710.

(*g*) Co. Lit. 88, b; [but see *Re D'Angibau*, 15 Ch. D. 228, 245.]

(*h*) Co. Lit. 172, a.

(*i*) Co. Lit. 52, a; Br. Ab. "Covert. and Infant," pl. 55.

(*j*) 1 Watk. on Copyh. 24.

(*k*) *Halliburton v. Leslie*, 2 Hog. 252.

(*l*) 38 G. 3. c. 87, s. 6.

(*m*) Toller on Executors, 31.

(*n*) *Russel's case*, 5 Rep. 27, a; Co. Lit. 172, a; *ib.* 264, b; 1 Roll. Ab. 730, F. 2.

[(*o*) Sugd. on Pow. 8th ed. 177, 911; 1 Preston on Abstracts, 325; *King v. Bellord*, 1 H. & M. 343; *Re D'Angibau*, 15 Ch. D. 228.]

[(*p*) *Re D'Angibau*, *ubi sup.*]

[(*q*) *Hearle v. Greenbank*, 3 Atk.